

House File 651

H-1213

1 Amend House File 651 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 24.2A, subsection 4, paragraph b,
5 subparagraph (2), Code 2025, is amended to read as follows:

6 (2) If the political subdivision is a city, notice of the
7 public hearing shall be published ~~not less than ten nor more~~
8 ~~than twenty days prior to the hearing~~ pursuant to section
9 362.3 in a newspaper published at least once weekly and having
10 general circulation in the city. However, if the city has a
11 population of two hundred or less, publication may be made by
12 posting in three public places in the city.

13 Sec. 2. Section 28E.17, subsection 3, paragraph a,
14 subparagraph (1), Code 2025, is amended to read as follows:

15 (1) The council shall give notice and conduct a hearing
16 on the proposal in the manner set forth in section 384.25.
17 ~~However, the notice must be published at least ten days prior~~
18 ~~to the hearing, and if~~ If a petition valid under section 362.4
19 is filed with the clerk of the city prior to the hearing,
20 asking that the question of issuing the bonds be submitted to
21 the registered voters of the city, the council shall either by
22 resolution declare the proposal abandoned or shall direct the
23 county commissioner of elections to call a special election to
24 vote upon the question of issuing the bonds. Notice of the
25 election and its conduct shall be in the manner provided in
26 section 384.26.

27 Sec. 3. Section 103A.12, subsection 2, Code 2025, is amended
28 to read as follows:

29 2. A governmental subdivision in which the state building
30 code is applicable may by ordinance, at any time after one year
31 has elapsed since the code became applicable, withdraw from the
32 application of the code. The local governing body shall hold
33 a public hearing pursuant to section 362.3, ~~after giving not~~
34 ~~less than four but not more than twenty days' public notice,~~
35 together with written notice to the commissioner of the time,

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1 place, and purpose of the hearing, before the ordinance to
2 withdraw is voted upon. A certified copy of the vote of the
3 local governing body shall be transmitted within ten days after
4 the vote is taken to the commissioner. The ordinance becomes
5 effective at a time to be specified in the ordinance, which
6 must be not less than one hundred eighty days after the date of
7 adoption. Upon the effective date of the ordinance, the state
8 building code ceases to apply to the governmental subdivision
9 except that construction of a building or structure pursuant to
10 a permit previously issued is not affected by the withdrawal.

11 Sec. 4. Section 368.3, subsection 2, Code 2025, is amended
12 to read as follows:

13 2. A city may also be discontinued in accordance with the
14 following procedures. The council shall adopt a resolution
15 of intent to discontinue and shall call a public hearing on
16 the proposal to discontinue. Notice of the time and place of
17 the public hearing and the proposed action shall be published
18 as provided in [section 362.3](#), ~~except that at least ten days'~~
19 ~~notice must be given.~~ At the public hearing, the council shall
20 receive oral and written comments regarding the proposal from
21 any person. Thereafter, the council, at the same meeting or at
22 a subsequent meeting, may pass a resolution of discontinuance
23 or pass a resolution abandoning the proposal. If the council
24 passes a resolution of discontinuance, a petition may be filed
25 with the clerk in the manner provided in [section 362.4](#), within
26 thirty days following the effective date of the resolution,
27 requesting that the question of discontinuance be submitted
28 to the registered voters of the city. Upon receipt of a
29 petition requesting an election, the council shall direct the
30 county commissioner of elections to call a special election
31 on the question of discontinuance or shall adopt a resolution
32 abandoning the discontinuance. Notice of the election shall
33 be given by publication as required in [section 49.53](#). If a
34 majority of those voting approve the discontinuance or if no
35 petition for an election is filed, the clerk shall send a copy

1 of the resolution of discontinuance and, if an election is
2 held, the results of the election to the board. The board
3 shall take control of the property of the discontinued city
4 and shall supervise procedures necessary to carry out the
5 discontinuance in accordance with [section 368.21](#).

6 Sec. 5. Section 368.15, Code 2025, is amended to read as
7 follows:

8 **368.15 Public hearing.**

9 The committee shall conduct a public hearing on a proposal
10 as soon as practicable. Notice of the hearing must be served
11 upon the council of each city for which a discontinuance
12 or boundary adjustment is proposed, the county board of
13 supervisors for each county ~~which~~ that contains a portion of
14 a city to be discontinued or territory to be incorporated,
15 annexed, or severed, and any regional planning authority for
16 the area involved. A notice of the hearing, which includes a
17 brief description of the proposal and a statement of where the
18 petition or plan is available for public inspection, must be
19 published as provided in [section 362.3](#), ~~except that there must~~
20 ~~be two publications in a newspaper having general circulation~~
21 ~~in each city and each territory involved in the proposal.~~ Any
22 person may submit written briefs, ~~and,~~ in the committee's
23 discretion, may be heard on the proposal. The board may
24 subpoena witnesses and documents relevant to the proposal.

25 Sec. 6. Section 372.4, subsection 4, Code 2025, is amended
26 to read as follows:

27 4. In a city having a population of less than five hundred,
28 the city council may adopt a resolution of intent to reduce the
29 number of council members from five to three and shall call a
30 public hearing on the proposal. Notice of the time and place
31 of the public hearing shall be published as provided in section
32 ~~362.3, except that at least ten days' notice must be given.~~ At
33 the public hearing, the council shall receive oral and written
34 comments regarding the proposal from any person. Thereafter,
35 the council, at the same meeting as the public hearing or at

1 a subsequent meeting, may adopt a final resolution to reduce
2 the number of council members from five to three or may adopt
3 a resolution abandoning the proposal. If the council adopts
4 a final resolution to reduce the number of council members
5 from five to three, a petition meeting the same requirements
6 specified in [section 362.4](#) for petitions authorized by city
7 code may be filed with the clerk within thirty days following
8 the effective date of the final resolution, requesting that
9 the question of reducing the number of council members from
10 five to three be submitted to the registered voters of the
11 city. Upon receipt of a petition requesting an election, the
12 council shall direct the county commissioner of elections
13 to put the proposal on the ballot for the next regular city
14 election. If the ballot proposal is adopted, the new council
15 shall be elected at the next following regular city election.
16 If a petition is not filed, the council shall notify the
17 county commissioner of elections by July 1 of the year of the
18 regular city election and the new council shall be elected
19 at that regular city election. If the council notifies the
20 commissioner of elections after July 1 of the year of the
21 regular city election, the change shall take effect at the next
22 following regular city election. The council shall determine
23 by ordinance whether the three council members are elected at
24 large or by ward.

25 Sec. 7. Section 384.16, subsection 3, Code 2025, is amended
26 to read as follows:

27 3. Following, and not until, completion of requirements
28 of [section 24.2A](#) ~~are completed~~, the council shall set a time
29 and place for public hearing on the budget before the final
30 certification date and shall publish notice of the hearing
31 ~~not less than ten nor more than twenty days before the~~
32 hearing pursuant to section 362.3 in a newspaper published
33 at least once weekly and having general circulation in the
34 city. However, if the city has a population of two hundred
35 or less, publication may be made by posting in three public

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1 places in the city. A summary of the proposed budget and a
2 description of the procedure for protesting the city budget
3 under [section 384.19](#), in the form prescribed by the director of
4 the department of management, shall be included in the notice.
5 Proof of publication of the notice under [this subsection 3](#)
6 must be filed with the county auditor. The department of
7 management shall prescribe the form for the public hearing
8 notice for use by cities.

9 Sec. 8. Section 384.38, subsection 3, paragraph a, Code
10 2025, is amended to read as follows:

11 a. A city may establish, by ordinance or by resolution
12 adopted as an ordinance after ~~twenty days'~~ notice published
13 in accordance with [section 362.3](#), and a public hearing, one
14 or more districts and schedules of fees for the connection of
15 property to the city sewer or water utility. If the governing
16 body directs that notice be made by mail, the notice shall be
17 as required in [section 384.50](#). Each person whose property will
18 be served by connecting to the city sewer or water utility
19 shall pay a connection fee to the city. The ordinance shall be
20 certified by the city and recorded in the office of the county
21 recorder of the county in which a district is located. The
22 connection fees are due and payable when a utility connection
23 application is filed with the city. A connection fee may
24 include the equitable cost of extending the utility to the
25 properties, including reasonable interest from the date of
26 construction to the date of payment. All fees collected under
27 this subsection shall be paid to the city treasurer. The
28 moneys collected as fees shall only be used for the purposes of
29 operating the utility, or to pay debt service on obligations
30 issued to finance improvements or extensions to the utility.

31 Sec. 9. Section 384.50, subsection 1, Code 2025, is amended
32 to read as follows:

33 1. The clerk shall publish notice of the date, time, and
34 place of the hearing once each week for two consecutive weeks
35 in the manner provided by [section 362.3](#), ~~the first publication~~

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1 ~~of which shall be not less than ten days before the date of the~~
2 ~~hearing.~~

3 Sec. 10. Section 400.1, subsection 1, Code 2025, is amended
4 to read as follows:

5 1. In cities having a population of eight thousand or over
6 and having a paid fire department or a paid police department,
7 the mayor, one year after a regular city election, with the
8 approval of the council, shall appoint three civil service
9 commissioners. The ~~mayor~~ city shall publish notice of the
10 names of persons selected for appointment ~~no less than thirty~~
11 ~~days prior to a vote by the city council pursuant to section~~
12 362.3. Commissioners shall hold office, one until the first
13 Monday in April of the second year, one until the first Monday
14 in April of the third year, and one until the first Monday
15 in April of the fourth year after such appointment, whose
16 successors shall be appointed for a term of four years. In
17 cities having a population of more than seventy thousand, the
18 city council may establish, by ordinance, the number of civil
19 service commissioners at not less than three.

20 Sec. 11. Section 404.2, subsection 6, Code 2025, is amended
21 to read as follows:

22 6. The city or county has adopted the proposed or amended
23 plan for the revitalization area after the requisite number
24 of hearings. The city or county may subsequently amend this
25 plan after a hearing. Notice of the hearing shall be published
26 as provided in section 362.3 or 331.305, ~~except that at~~
27 ~~least seven days' notice must be given and the public hearing~~
28 ~~shall not be held earlier than the next regularly scheduled~~
29 ~~city council or board of supervisors meeting following the~~
30 ~~published notice.~~ A city ~~which~~ that has adopted a plan for
31 a revitalization area ~~which~~ that covers all property within
32 the city limits may amend that plan at any time, pursuant to
33 this section, to include property ~~which~~ that has been or will
34 be annexed to the city. The provisions of the original plan
35 shall be applicable to the property ~~which~~ that is annexed and

1 the property shall be considered to have been part of the
2 revitalization area as of the effective date of its annexation
3 to the city.

4 Sec. 12. Section 414.4, Code 2025, is amended to read as
5 follows:

6 **414.4 Zoning regulations, district boundaries, amendments.**

7 The council of the city shall provide for the manner in
8 which the regulations and restrictions and the boundaries of
9 the districts shall be determined, established, and enforced,
10 and from time to time amended, supplemented, or changed.
11 However, the regulation, restriction, or boundary shall not
12 become effective until after a public hearing at which parties
13 in interest and citizens shall have an opportunity to be
14 heard. The notice of the time and place of the hearing shall
15 be published as provided in [section 362.3](#), ~~except that at~~
16 ~~least seven days' notice must be given and in no case shall~~
17 ~~the public hearing be held earlier than the next regularly~~
18 ~~scheduled city council meeting following the published notice.>~~

SMITH of Dubuque